

# Software drafts your lab result note.

Memorial Hermann clinicians in Houston draft a patient's result note with an assistant in Epic.



# The draft appears as the result opens.

Art helps generate an initial draft patient note in real time while clinicians review lab and imaging results in Epic’s In Basket.



# The clinician can edit it first.

Memorial Hermann's chief medical information officer calls the draft a starting point clinicians can review, edit and personalize before sharing with the patient.



# Eight words searched. None on the page.

Clinicians at Memorial Hermann Health System (MHHS) are using a new artificial intelligence (AI) tool built directly into Epic to help patients better understand their test results and to make informed decisions about next steps in their care journey.

| SEARCHED        | FOUND                    |
|-----------------|--------------------------|
| disclose        | <input type="checkbox"/> |
| disclosure      | <input type="checkbox"/> |
| notify          | <input type="checkbox"/> |
| notified        | <input type="checkbox"/> |
| inform patients | <input type="checkbox"/> |
| told            | <input type="checkbox"/> |
| transparen      | <input type="checkbox"/> |
| label           | <input type="checkbox"/> |

# Three figures. No denominator.

32%

fewer follow-up messages when clinicians started from the draft

over 55,000

messages the tool has helped care teams write

nine seconds

saved on average per result comment

PUBLISHED BY THE HEALTH SYSTEM AND ITS VENDOR

baseline



control arm



denominator



# The test healthsystemCIO points to was not in Texas.

A randomized pilot of fifty two doctors at UC San Diego Health in 2023. Reply time moved less than 6% and missed statistical significance.



UC SAN DIEGO HEALTH, 2023  
DRAFT REPLIES TO PATIENT MESSAGES

# One says agency. One says provider.

SEC. 552.051, IN FORCE SINCE JANUARY 1ST, 2026

(b) **A governmental agency**

that makes available an artificial intelligence system intended to interact with consumers shall disclose to each consumer, before or at the time of interaction

(c) **A person**

is required to make the disclosure under Subsection (b) regardless of whether it would be obvious to a reasonable consumer that the consumer is interacting with an artificial intelligence system

(f) **the provider of the service or treatment**

shall provide the disclosure under Subsection (b) to the recipient

The word governmental does not appear in (f).

Read the other way, (f) sets only the timing for a duty (b) gives to an agency.

# Every section, and none headed Applicability.

## SUBCHAPTER A. GENERAL PROVISIONS

Sec. 552.001. DEFINITIONS

Sec. 552.002. CONSTRUCTION OF CHAPTER

Sec. 552.003. LOCAL PREEMPTION

## SUBCHAPTER B. DUTIES AND PROHIBITIONS ON USE OF ARTIFICIAL INTELLIGENCE

Sec. 552.051. DISCLOSURE TO CONSUMERS

Sec. 552.052. MANIPULATION OF HUMAN BEHAVIOR

Sec. 552.053. SOCIAL SCORING

Sec. 552.054. CAPTURE OF BIOMETRIC DATA

Sec. 552.055. CONSTITUTIONAL PROTECTION

Sec. 552.056. UNLAWFUL DISCRIMINATION

Sec. 552.057. CERTAIN SEXUALLY EXPLICIT CONTENT AND  
CHILD PORNOGRAPHY

## SUBCHAPTER C. ENFORCEMENT

Sec. 552.101. ENFORCEMENT AUTHORITY

Sec. 552.102. INFORMATION AND COMPLAINTS

Sec. 552.103. INVESTIGATIVE AUTHORITY

Sec. 552.104. NOTICE OF VIOLATION; OPPORTUNITY TO CURE

Sec. 552.105. CIVIL PENALTY; INJUNCTION

Sec. 552.106. ENFORCEMENT ACTIONS BY STATE AGENCIES

# Ask before the first visit, not after.

If a disclosure is owed under Section 552.051, the statute's timing is not later than the date the service or treatment is first provided. In an emergency it moves to as soon as reasonably possible.

ASK WHO WROTE IT  
NO PRIVATE SUIT  
THE CHAPTER DIRECTS  
COMPLAINTS TO THE  
ATTORNEY GENERAL

